# AMENDMENT NO. 5

between Meridian Ridge Capital LP and Victoria Ashdown (Trader ID T-2001)

Dated 2023-07-01

## RECITALS

WHEREAS, the Firm and Victoria Ashdown (Trader ID T-2001) are parties to an Employment and Compensation Agreement (the "Agreement");

NOW, THEREFORE, the parties agree to amend the Agreement as follows:

## ARTICLE I - AMENDMENTS

**Section 1.01 Non-Competition.** The Non-Competition provisions of the Agreement are deleted and replaced with the following: For twelve (12) months following termination the Trader shall not engage in a Competing Business.

## ARTICLE II - GENERAL

**Section 2.01 General.** The parties shall attempt in good faith to resolve any dispute arising under this Agreement through negotiation before commencing arbitration. The Trader acknowledges that the Firm's business is highly competitive and that its methods, strategies and positions are of substantial value. The Trader shall perform such duties as are customarily associated with the position and as the Firm may reasonably assign from time to time. This Agreement may be executed in counterparts, each of which shall be deemed an original and all of which together constitute one instrument.

Headings in this Agreement are for convenience only and shall not affect its interpretation. This Agreement may be executed in counterparts, each of which shall be deemed an original and all of which together constitute one instrument. The Trader shall promptly disclose to the Firm any actual or potential conflict of interest of which the Trader becomes aware. All work product, models, code and analyses created by the Trader in the course of employment shall be the exclusive property of the Firm. The Firm shall reimburse the Trader for reasonable business expenses incurred in accordance with the Firm's expense policy.

The Trader shall not, during or after employment, use or disclose any Confidential Information except as required in the proper performance of duties. The failure of either party to enforce any provision of this Agreement shall not be construed as a waiver of that provision or of the right to enforce it thereafter. Nothing in this Agreement shall be construed to create a partnership, joint venture or agency relationship between the parties. The Firm shall reimburse the Trader for reasonable business expenses incurred in accordance with the Firm's expense policy. This Agreement may be executed in counterparts, each of which shall be deemed an original and all of which together constitute one instrument.

**Section 2.02 Reporting.** The Trader shall comply with all written policies of the Firm, including its compliance manual, code of ethics and personal trading policy, as amended from time to time. The Trader shall maintain all licenses and registrations required by applicable regulators for the performance of the Trader's duties. The Firm shall reimburse the Trader for reasonable business expenses incurred in accordance with the Firm's expense policy. Headings in this Agreement are for convenience only and shall not affect its interpretation.

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**Section 2.03 Cooperation.** The Trader acknowledges that the Firm's business is highly competitive and that its methods, strategies and positions are of substantial value. Headings in this Agreement are for convenience only and shall not affect its interpretation. The parties shall attempt in good faith to resolve any dispute arising under this Agreement through negotiation before commencing arbitration. All work product, models, code and analyses created by the Trader in the course of employment shall be the exclusive property of the Firm. If any provision of this Agreement is held invalid or unenforceable, the remaining provisions shall continue in full force and effect.

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**Section 2.04 Remedies.** The Trader shall comply with all written policies of the Firm, including its compliance manual, code of ethics and personal trading policy, as amended from time to time. Except as expressly provided herein, no amendment to this Agreement shall be effective unless made in writing and signed by both parties. Headings in this Agreement are for convenience only and shall not affect its interpretation. The Trader shall promptly disclose to the Firm any actual or potential conflict of interest of which the Trader becomes aware.

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**Section 2.05 Standards.** Any notice required under this Agreement shall be in writing and delivered by hand, by courier or by electronic mail to the addresses set out herein. The failure of either party to

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**Section 2.08 Survival.** The Trader acknowledges that the Firm's business is highly competitive and that its methods, strategies and positions are of substantial value. If any provision of this Agreement is held invalid or unenforceable, the remaining provisions shall continue in full force and effect. This Agreement may be executed in counterparts, each of which shall be deemed an original and all of which together constitute one instrument. The Trader shall cooperate fully with any internal or regulatory investigation relating to matters within the Trader's knowledge. The Trader shall perform such duties as are customarily associated with the position and as the Firm may reasonably assign from time to time.

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**Section 2.09 Exceptions.** Any notice required under this Agreement shall be in writing and delivered by hand, by courier or by electronic mail to the addresses set out herein. The Firm shall reimburse the Trader for reasonable business expenses incurred in accordance with the Firm's expense policy. The Trader acknowledges that the Firm's business is highly competitive and that its methods, strategies and positions are of substantial value. If any provision of this Agreement is held invalid or unenforceable, the remaining provisions shall continue in full force and effect. Headings in this Agreement are for convenience only and shall not affect its interpretation.

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## SIGNATURE PAGE

Executed as of 2023-07-01.

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